

**2019 P L C (C.S.) 1286**

**[Lahore High Court (Bahawalpur Bench)]**

**Before Jawad Hassan, J**

**ABDUL HADI**

**Versus**

**The SECRETARY FINANCE and 4 others**

W.P. No. 4588 of 2017/BWP, decided on 18th March, 2019.

**Civil service---**

---Application by employee for retirement under Voluntary Separation Scheme---  
Withdrawal of---Effect---Employee moved an application for retirement under Voluntary Separation Scheme but before acceptance of the same another application for withdrawal of earlier application was submitted---Authorities ordered for retirement of employee under Voluntary Separation Scheme and thereafter dismissed the petition for withdrawal of application for retirement under Voluntary Separation Scheme---Validity---Employee could withdraw his voluntary retirement before it came into effect---Petitioner had applied for withdrawal of retirement under Voluntary Separation Scheme well within time and that too prior to acceptance of his earlier application---Authorities were bound to decide firstly application for withdrawal of retirement under Voluntary Separation Scheme either way and then proceed in accordance with law---Department had committed illegality while passing the impugned order, in circumstances---Receiving retirement benefits under protest could, not be considered that employee had exercised Voluntary Separation Scheme---Impugned order passed by the authorities was set aside and petition was remitted to the department with the direction to look into the matter and decide the same afresh after affording opportunity of hearing to all the concerned---Constitutional petition was disposed of, in circumstances.

The Secretary Punjab Public Service Commission, Lahore and others v. Aamir Hayat and others 2019 SCMR 124 ref.

Government of Sindh through Secretary S&GAD and another v. Raja Muhammad Inayat Khan 2000 SCMR 1964 rel.

Rai Mazhar Hussain Kharal, Sardar Abdul Basir Balouch, Shakeel Ahmed Bobra, Muhammad Yaseen Ataal, Khalid Hafeez and Muhammad Rizwan for Petitioner.

Khawaja Muhammad Ajmal for Respondents Nos.2 to 5.

**ORDER**

**JAWAD HASSAN, J.**---Through the instant petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has assailed the acceptance letter dated 27.01.2017 and office order dated 03.05.2017 passed by the Respondents.

2. The facts succinctly revealed from the petition are that the Petitioner was working as Manager at Branch Office Rahimyar Khan, House Building Finance Company (HBFC). The Respondent No.3 issued a circular dated 22.12.2016 regarding Voluntary Severance Scheme (VSS)-2016 and fixed the date for apply at or before 30.12.2016 which was extended later on as 20.01.2017 vide circular dated 12.01.2017. To avail the benefit of the same the Petitioner applied through written application dated 29.12.2016 but due before its acceptance and closing date of submission of applications for VSS, the Petitioner immediately on 06.01.2017 submitted another application for the withdrawal of earlier application dated 29.12.2016 mentioning therein that due to some unavoidable circumstances the Petitioner did not want to avail the VSS. But without deciding his second application dated 06.01.2017 for withdrawal of VSS package, the Assistant Vice-President with the approval of the Respondent No.3 accepted his earlier application dated 29.12.2016 through the impugned acceptance letter dated 27.01.2017.

3. Feeling aggrieved thereby the Petitioner submitted representation before the Respondent No.2 praying therein his reinstatement into service coupled with the reminder but in vain. Hence, the Petitioner filed W.P. No.2726/2017 which was disposed of by this Court vide order dated 11.04.2017 with the direction to the Respondent No.2 to decide the pending representation of the Petitioner and in result thereof the Respondent No.2 rejected the same vide the impugned office order dated 03.05.2017. Hence, this petition.

4. In reply to the petition the Respondents have filed report and parawise comments denying all the allegations and prayed for dismissal of the petition.

5. Learned counsel for the Petitioner inter alia contended that the impugned letter and office order are against the law and facts; that the application of the Petitioner for withdrawal of VSS dated 06.01.2017 was to be decided before acceptance of his earlier application; that the application for withdrawal of VSS was not considered by the Respondents, as such he has not been treated in accordance with law; that other similarly placed employees have been allowed withdrawal of VSS but the Petitioner has been denied of the same, as such a discriminatory attitude has been adopted towards the case of the Petitioner which is sheer violation of his fundamental rights guaranteed under the Constitution; that the impugned office order does not contain any logical reason for rejection of the same; that the public functionaries should be more reasonable and benevolent towards their employees rather than to litigate for the sake of litigation at public expenses; that the cheque given under the VSS has been accepted by the Petitioner Under Protest. In support of his contention the learned counsel for the Petitioner has placed reliance on the case titled Muhammad Irfan Khan and others v. The Federation of Pakistan and others (C.P. No.D-5773 of 2016), Government of Sindh through Secretary S&GAD and another v. Raja Muhammad Inayat Khan (2000 SCMR 1964), Muhammad Ali Gohar Zaidi v. House Building Finance Corporation and others (C.A. No.26-K of 2012).

6. On the other hand, learned counsel for the Respondents vehemently opposed the contentions advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the ground that the impugned letter as well as office order have rightly been passed; that the Petitioner has no locus standi to file this petition; that the material facts have been concealed by the Petitioner in the petition, as such he has not come to the Court with clean hands; that the Petitioner without any duress had submitted application for VSS package and now at belated stage he cannot be allowed to withdraw the same; that principle of estoppel duly applied in the case of the Petitioner; that the withdrawal of VSS package application of the Petitioner had duly been responded by the Respondent; that the VSS package has specific condition that once it is exercised the same cannot be altered or withdrawn (para No.7.1) to strengthen his arguments the learned counsel for the Respondents has placed reliance on the case title The Secretary Punjab Public Service Commission, Lahore and others v. Aamir Hayat and others (2019 SCMR 124).

7. I have heard the arguments of both the sides and perused the record.

8. There are certain facts which are admitted and have never been denied by either party which are as follows:

- i. The Petitioner was employee of the Respondents.
- ii. The dead final date to apply for VSS package was 20.01.2017.
- iii. The Petitioner submitted application to avail VSS package on 29.12.2016.
- iv. The application for withdrawal of earlier application dated 29.12.2016 was filed on 06.01.2017.
- v. The application for VSS package dated 29.12.2016 was accepted by the Respondents on 27.01.2017.
- vi. Representation of the Petitioner was rejected on 11.04.2017.
- vii. The cheque amounting to Rs.10,160,441/- under VSS package was received by the Petitioner Under Protest on 15.03.2017.

9. The main grievance of the Petitioner is that his application dated 06.01.2017 for withdrawal of application for VSS package has not been considered prior to acceptance of his earlier application dated 29.12.2016. Learned counsel for the Petitioner has placed reliance on the case of Government of Sindh supra. I have gone through the said judgment; the relevant portions thereof are reproduced below and are as follows:

"Voluntary retirement by exercising option after completion of 25 years' qualifying service. Civil servant would be entitled to withdraw his request for voluntary retirement when notification of his retirement had not come into effect. It would be discreet exercise of power and authority to allow civil servant to continue in service rather than to approach the problem with bureaucratic trend by rejecting reasonable request for withdrawal of voluntary retirement. In such case, judgment of Service Tribunal allowing service Appeal of civil servant and restoring him to him original

position as Section officer was neither improper nor arbitrary or contrary to law so as to attract interference of Supreme Court.

Voluntary retirement. Withdrawal of offer as to voluntary retirement. Circumstances that civil servant had drawn the amount of leave encashment for 180 days alone could not operate as bar to withdrawal of offer of voluntary retirement.

There is no inflexible rule of law that in service matters, option of voluntary retirement once exercised is final and cannot be retraced under any circumstances. Each case must be examined on the facts and circumstances obtaining in a case. Indeed no hard and fast rule can be laid down for this proposition. Even in case of resignation it has been held that once resignation was tendered, an employee was allowed to withdraw the same before the said had been acted upon."

10. In view of the above enunciate principle, an employee can withdraw his voluntary retirement before it comes into effect. Similar is the case of the Petitioner as the Petitioner applied for VSS package on 29.12.2016 and subsequently filed withdrawal application on 06.01.2017 before the cutoff date i.e. 20.01.2017; meaning thereby that the Petitioner had applied for withdrawal of VSS package well within time and that too prior to acceptance of his earlier application dated 29.12.2016. Therefore, the Respondents were obligatory to decide firstly, his application for withdrawal of VSS package either way and then proceed in accordance with law but by passing the impugned letter as well as office order have committed material illegality. Although the withdrawal application of the Petitioner was responded by the Respondent yet the same was at belated stage. In this regard the contention of the Respondents mentioned in the report and parawise comments is that the request of the Petitioner regarding withdrawal of VSS package was replied vide e-mail dated 12.01.2017 by the Regional Head Central, Lahore that the application once submitted cannot be withdrawn and this was in accordance with the terms and conditions laid down in the policy circular of VSS. Contrarily, this contention of responding the withdrawal application via e-mail has been denied by the Petitioner with vehemence. The Copy of the said e-mail attached with the report and parawise comments reflects that the same has not been sent to the Petitioner rather the branch concerned, as such it cannot be presumed that the fate of the same has been conveyed to the Petitioner. However, the Respondents have also appended with the report and parawise comments copy of letter dated 10.04.2017 which shows that the request of withdrawal of the Petitioner has been rejected by the Respondents; that means the Petitioner's request was declined after the acceptance of the VSS package.

11. Furthermore, the stance of the Respondents that according to clause-7.1 of the VSS circular dated 22.12.2016 the application of the Petitioner for withdrawal of VSS cannot be allowed as "option for VSS once exercised cannot be altered or withdrawn.". It is clear from the record that the application for withdrawal of the VSS package was submitted before the same has been exercised i.e. prior to its acceptance, as, such this clause does not apply in the instant case. Furthermore, the receiving of the cheque by the Petitioner was Under Protest which also shows the intention of the Petitioner that he wished to withdraw the said VSS package and that cannot be considered that he has exercised the said VSS package.

12. Be that as it may, suffice it to say that the Respondents ought to have decided the

application of the Petitioner dated 06.01.2017 for withdrawal of VSS package prior to acceptance of his earlier application dated 29.12.2016. Consequently, the impugned letter dated 27.01.2017 as well as office order dated 03.05.2017 are set aside. In the interest of justice it would be more appropriate to transmit this petition along with all its annexures to the Respondent No.2 to look into the matter and decide the above referred application of the Petitioner dated 06.01.2017 afresh after providing opportunity of personal hearing to all the concerned including the Petitioner within a period of 15 days from the receipt of certified copy of this order. During the course of arguments the Court has been apprised that in case the Petitioner is reinstated into service even then he has attained his age of superannuation. Keeping in view the above referred circumstances, the Respondent No.2 shall firstly decide the application of the Petitioner dated 06.01.2017 and then proceed strictly in accordance with law.

13. In view of the above terms, this petition stands disposed of.

ZC/A-34/L

Petition dispose of.